



Wake up

Know your rights as a consumer

Edward Henning

In the last issue we described the efforts being made by the Indian government to improve consumer service in this country, and, in particular the availability of the National Consumer Helpline (1800-11-4000). This helpline is run out of Delhi, and is intended to give help and advice to consumers who feel they have been let down after purchasing some product or service. The most interesting point about this helpline is the growing list of companies that have signed up agreeing to give fast responses to any complaints coming into the helpline, typically within 24 hours.

Despite the significant promotional campaign that has been run by the Department of Consumer Affairs, it appears that not everybody has understood the message. By coincidence, a colleague here in our publishing company had an apparently genuine complaint with a company that we knew to be on the Helpline list. So, he was informed of this, and it was suggested that he call the Helpline. But, he clearly did not believe it and seemed to think we were simply palming him off instead of genuinely trying to help! It needs to be pointed out that the Helpline is not a black hole into which any complaint will disappear never to be seen again. Much attention has been paid to trying to give a prompt response, particularly when it concerns the companies on the list mentioned before.

This service is in the process of being extended. *Digit* spoke recently to Mr. Sanjay Singh, Joint Secretary for the Department of Consumer Affairs. He informed us that having established the national Helpline, the next steps are to set up regional helplines. There are several reasons for this. One is to help cater to people speaking the large number of regional languages in India. Also, the problems people encounter will often vary considerably from region to region, and a local service will be better able to address issues raised by consumers. Local helplines will also be better able to help consumers in rural areas; reaching and helping the people in those areas is considered a critical priority.

Funding for these regional lines has been arranged, and some are already operating – Gujarat was mentioned, for example. Later on, perhaps in a couple of years time, all these regional

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helplines will have been established and will be integrated with the national system; they will be able to share data and interact with each other. In the meantime, they will have to act as stand-alone operations.

Here at *Digit*, we would like to know of your experiences in using the Helpline if you have had cause to do so. Please let us know (at servicewatch@thinkdigit.com) how prompt was the response and if your complaint was satisfactorily dealt with. All constructive feedback will be shared with the Department of Consumer Affairs. ■

Demand Your Rights!!

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Naming and Shaming

One tactic that is being used by the government in order to attempt to force companies to improve their level of customer service is to name and shame them on one of its web sites. The CORE Centre (Consumer Online Resource & Empowerment Centre, www.corecentre.co.in) carries a list of companies that it feels have not responded properly to complaints that have been received. This list is given a pretty direct title: "Brands not Friendly and not Caring for Consumers". It lists the names of the most offending brands, gives the number of complaints, and the responses. For example, the TV manufacturer Videocon is listed as having had 35 complaints made against, it has replied to none of the complaint communications passed to it by the CORE Centre, and has consequently resolved none of these complaints!

The CORE Centre states that it has taken this course of action in order to enable consumers to "Beware" of these organisations – in other words, perhaps you would be better off not buying from them. The more consumers who check this, and any other similar lists and do form their purchasing decision accordingly, the better the service will be that companies in general will provide. As one image on the CORE web site states: "Demand Your Rights!!" Informed by lists such as on the CORE web site, from reviews and so forth in magazines, also the experience of friends and colleagues – all of this is best put to use as consumer pressure. Letting the companies concerned know of your needs, and insisting on better quality of goods and services, not only helps all consumers, but the companies themselves. By forcing them to do a better job, makes you more likely to be a happily returning customer. Is that not what they want?

Getting them to respond

We received a complaint from a reader, Abhijit Banik, with a sorry tale regarding an MSP 345 Champion XL printer from TVS Electronics. This came with a two year onsite warranty. After about a year, problems started, which led to the device "basically not printing". TVS made five service visits to the printer and each time the same problems would occur again after just a few days. Crucially, with his later complaints going unanswered, this dragged on beyond the point when the warranty had expired. In frustration, he contacted *Digit*.

We wrote to TVS, and to the company's credit Mr. Banik's printer was promptly replaced. He tells us "the new printer seems to be working fine and I have their people calling on me personally and over the phone to find out if I am happy and if everything is fine very often."

Clearly the original service engineer did not properly diagnose the problem – it should not take five service visits before an engineer realises that a fault is so serious that a device needs replacement rather than repair.

TVS contacted *Digit* with the shortest of replies: "customer did have a problem with the printer and we replaced the printer with a new one". No explanation was forthcoming for this unfortunate episode.

The lesson from this story is certainly to be more proactive in demanding proper attention well before the warranty runs out on a

product. If a problem starts to drag on in this way, escalate up to the senior management in the relevant company. Don't be shy; go to the top and demand attention. Other readers have told us of problems dragging on in this way – perhaps deliberately, perhaps not – beyond the expiry of the warranty. It then becomes much more difficult to find redress.

For example, reader K. Jagdish had trouble with a PC purchased from Rex Infosys (P) Ltd., Pala, which included an ASUS K8X-MX-UAYKZ series mother board and AMD Athlon 64 1.80 MHz. It started to break down very early and the motherboard was changed four times. Finally, the dealer stated that the processor was at fault, but that AMD refused to replace it as the warranty had expired.

After the reader contacted us, we got onto AMD. We were told that by the time that AMD was informed of this, the warranty had indeed expired. The company decided to make an exception in this case, and has replaced the faulty part, but was concerned that it had taken so long for the dealer to pass this onto AMD. With the motherboard being exchanged four times, this case is very similar to that of the faulty TVS printer. It seems most likely that a mis-diagnosis also occurred here, with the service people thinking repeatedly that the motherboard was at fault and not the processor.